

T. Applications by non-entitled persons

Art. 61 EPC deals with the remedies available where a person other than the patent applicant is held by a national court to be the person entitled to the grant of a European patent. The Article remains unchanged in substance. For further details, see R. 16 EPC and R. 17 EPC.

In G 3/92 (OJ 1994, 607), the Enlarged Board of Appeal was called upon to consider the application of Art. 61(1)(b) EPC 1973 in the following circumstances:

The appellant had lodged a European patent application in 1988. The search report revealed the existence of a prior application filed in 1985 for substantially the same invention by a third party, to whom the appellant had revealed the invention in confidence in 1982. This prior application had been published, and in 1986 deemed to be withdrawn for non-payment of the examination fee. Thereupon the appellant claimed from the UK Patent Office Comptroller, and was granted, entitlement to a patent for the invention disclosed in the prior European application under Section 12(1) UK Patents Act 1977. The appellant was thus allowed under Section 12(6) UK Patents Act 1977 to file a new application in the UK to be treated as having the same filing dates as the prior European application. The appellant then filed a new European patent application in respect of the invention disclosed in the prior application under Art. 61(1)(b) EPC 1973 in 1990.

The referring Legal Board of Appeal took the view in its interlocutory decision J 1/91 (OJ 1993, 281) that the Comptroller's decision was a final decision within the meaning of Art. 61 EPC 1973. However, whilst entitlement to a patent was a matter for national courts to decide, those courts had no power directly to provide a remedy under the Convention, that being a matter to be dealt with by the EPO under Art. 61 EPC 1973.

The Enlarged Board of Appeal held that when it has been adjudged by a final decision of a national court that a person other than the applicant is entitled to the grant of a European patent, and that person, in compliance with the specific requirements of Art. 61(1) EPC 1973, files a new European patent application in respect of the same invention under Art. 61(1)(b) EPC 1973, it is not a pre-condition for the application to be accepted that the earlier original usurping application is still pending before the EPO at the time the new application is filed.

The Legal Board of Appeal therefore ruled in J 1/91 of 25 August 1994 that the conditions of Art. 61(1)(b) EPC 1973 had been met and accordingly remitted the patent application to the Receiving Section for further prosecution.

For stay of proceedings before the EPO in case of entitlement suit, see also chapter III.M.3. "Stay of proceedings under Rule 14(1) EPC".

U. Rules relating to Fees

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1. General

The Rules relating to Fees (RFees) determine the amounts of the fees levied by the EPO and the ways in which they are to be paid (Art. 51(4) EPC). They also contain provisions regulating the due date for fees, the particulars to be indicated concerning payments, the date of payment, insufficient payments and certain refunds and reductions.

According to J 7/07, no provision of the EPC states explicitly that the EPC takes precedence over the Rules relating to Fees in cases of conflict between them. However, the EPC is clearly the higher legal norm, and in case of conflict, by analogy with Art. 164(2) EPC 1973, the provisions of the EPC should take precedence. Also on general legal principles, the Implementing Regulations should take precedence over the Rules relating to Fees. See also summary of J 7/07 in chapter III.D.1.2.2.

The EPC 2000 required a revised version of the Rules relating to Fees, which also entered into force on 13.12.2007 (see Administrative Council decision of 7.12.2006, OJ 2007, 10; also Administrative Council decision of 25.10.2007, OJ 2007, 533). For subsequent amendments see the regularly updated HTML version of the Rules relating to Fees, and its "Version history" function, on the EPO website (see also OJ 2018, A98). The relevant chapter of the Guidelines for Examination (March 2022 version) is Part A-X. Up-to-date fee information is available in the Official Journal of the EPO under the rubric "Guidance for the payment of fees, expenses and prices" and at www.epo.org/applying/fees/fees.html.

Besides the cases set out below, decisions concerning individual procedural fees are to be found in the relevant chapters of this book.

2. Payment of fees

2.1. Methods of payment

Fees due to the Office may be paid by the methods foreseen in Art. 5 RFees (see also R 2/09). Art. 5(1) RFees provides for payment or transfer to a bank account held by the Office. Under Art. 5(2) RFees further fee payment methods may be allowed by the President of the EPO. These are payment by debit order from a deposit account held with the EPO (see next section) and payment by credit card (since 1.12.2017 – see decision of the President, OJ 2017, A72, and notice, OJ 2021, A73). On the establishment of the online Central Fee Payment system, see OJ 2020, A130 and OJ 2021, A61.

2.2. Debit orders

Under Art. 5(2) and Art. 7(2) RFees the EPO makes deposit accounts available for paying fees to the EPO (not, however, for the fees according to Art. 17 REE – see D 9/17). They are governed by the Arrangements for deposit accounts (ADA) and their annexes. For the current version and accompanying notice, see Supplementary publication 4, OJ 2019; for amendments, see OJ 2020, A77 and A78, OJ 2021, A26, A60 and A61. Note that a revised version of the ADA is due to be published in 2022.

Payments from a deposit account are made by debit order, and most fees are paid by this method. Since 2017, debit orders submitted to the EPO must be filed in an electronically processable format by an accepted means (point 5 ADA). With that, the previous payment form EPO Form 1010 in particular has become obsolete (for more on debit orders that are invalid because submitted in another way or format, see point 5.1.3 ADA, Supplementary publication 4, OJ 2019, and decision of the President, OJ 2021, A26; see also T 590/18 of 4 July 2018 in chapter III.A.2.2.1, T 2575/19 and T 703/19). It follows that some of the decisions in this section are now of limited application.

The EPO's long-standing practice of correcting debit orders of its own motion dates back to T 152/82 (Debit order I, OJ 1984, 301), according to which a debit order must be carried out notwithstanding incorrect information given in it (here the wrong fee amount), if the intention of the person giving the order is clear (see headnote II.). See also the recent decision T 1474/19. In T 17/83 (Debit order II, OJ 1984, 306) the board concluded, with reference to T 152/82, that if a submission to the EPO stated that a debit order for payment of a fee had been issued, this statement could, if need be, itself be considered such a debit order in the absence of any record of the original (see headnote). These decisions were followed by T 170/83 (Debit order III, OJ 1984, 605), which held that for payment by debit order the question was whether the EPO was authorised in due time to avail itself for a clearly specified purpose of funds deposited with it, notwithstanding formal deficiencies (here use of a national form in error). Applying the same approach, the board in T 152/85 (OJ 1987, 191) concluded that no document had been timely filed which could be construed as a debit order.

In T 1265/10 the board considered in the particular circumstances of the case that the crossing of Section X of the notice of opposition (EPO Form 2300) to indicate enclosure

of a fee payment voucher (which enclosure, however, was not found at the EPO) was a declaration of the intention to pay the opposition fee. A debit order had to be unambiguously recognisable and show a clear and unambiguous intention to make a particular payment (T.170/83, OJ 1984, 605; T.152/82, OJ 1984, 301; T.152/85, OJ 1987, 191). As stated in T.170/83, an authorisation to be derived from the circumstances required that the authorising person (account holder) was known and clearly identifiable, and that certain fees due to the EPO for a known procedure were meant to be paid by the withdrawal from such account (and not in any other way). Following T.806/99, which was based on almost identical facts, the board found these conditions to be fulfilled. This was sufficient for payment of the fee.

In J.14/12 the question was whether for the renewal fees paid on a divisional application additional fees were also due. The board found that, for some of the renewal fees, a letter filed within the four-month period of R.51(3), second sentence, EPC requesting (in general terms) debiting of the fees falling due with the filing of that divisional application was, when read in conjunction with the internal fee calculation sheet filed with the application, sufficient to fulfil the requirements for the content of a valid debit order (see former point 6.3 ADA, as published in Supplement to OJ 3/2009). Hence, those renewal fees were timely paid and additional fees were not due.

In T.198/16 the board held that the statement in the electronically filed notice of appeal "The appeal fee is paid via the enclosed form 1010" (which form was not enclosed) was not a "clear, unambiguous and unconditional" debit order under point 6.3 ADA 2015, but a mere statement that such a debit order was supposed to be given (T.1265/10 distinguished in this respect). See also in this regard T.703/19 (payment of appeal fee via Online Fee Payment).

In early decision T.170/83 (OJ 1984, 605 – see above), the board observed that, because the running of deposit accounts fell outside the grant or opposition procedures, it was not governed by the correction provisions of R.88, first sentence, EPC 1973 (cf. R.139, first sentence, EPC). To make a payment was to perform an act, namely to make a given amount available to the EPO at a particular time (Art.9(1), first sentence, RFees; cf. now Art.8, first sentence, RFees). A similar conclusion was reached in T.152/85 (OJ 1987, 191). However, R.139, first sentence, EPC has been applied to correct an error in a debit order in some recent board of appeal decisions, since the above-mentioned introduction in point 5 ADA of stricter conditions for filing debit orders (see T.1000/19) and also in the context of debit orders which have mistakenly indicated the reduced rather than the full appeal fee (see chapter V.A.2.5.4).

In T.773/07 the appellant's deposit account held insufficient funds to cover the appeal fee. The board rejected the argument that this fee could or should have been booked before six other fees on the relevant date. It was not for the EPO cashier to choose priorities between fees to be paid, all the more so since under the ADA it was the responsibility of the account holder to ensure that the account contained sufficient funds at all times.

In T.871/08 of 23.2.2009 the opponent had indicated that the appeal fee would be paid by online debit order, but also requested that, if this was not done by one day before expiry

of the Art. 108 EPC 1973 time limit, the Office should debit the fee. The board held that the payment of the appeal fee was exclusively the responsibility of the appellant or its representative, who could not discharge themselves by shifting the responsibility to the Office, let alone with a conditional order. However, in T 2364/12 a different conclusion was reached in the circumstances of that case. It is to be noted that debit orders may now specify a deferred execution date.

As confirmed in T 270/00, if an automatic debit order is revoked after the decisive payment date for the appeal fee, this is too late to affect the payment. Valid payment of the appeal fee is a matter of fact, which cannot be undone and is not at the disposal of the appellant. In relation to the revocation of an automatic debit order on its execution date see J 6/21.

2.3. Indication of purpose of payment

Art. 6 RFees (previously Art. 7 RFees) regulates the particulars concerning payments, which include those necessary to enable the Office to establish a payment's purpose.

According to J 16/84 (OJ 1985, 357, headnote), if when a fee is paid the purpose of the payment has evidently been given incorrectly, this deficiency is not prejudicial if the intended purpose can be established without difficulty from the remaining information. The inadvertent use of a fee by the EPO for a different purpose from that evidently intended by the person making the payment has no effect on the purpose intended by that person.

J 23/82 (OJ 1983, 127) and J 19/96 concerned designation fees for individual contracting states under the earlier law. In J 19/96 the board noted that J 23/82 held that the indication of the purpose of a payment within the time limit for payment was not a mandatory requirement for payment to have been made in due time and, according to Art. 7(2) RFees (now Art. 6(2) RFees), could thus still be given later. However, the current board doubted whether this meant that it was generally possible to change the purpose of a payment after expiry of the relevant time limit with retroactive effect to the date on which the payment was made.

For decisions concerning payments by debit order, see also the previous section.

3. Date of payment

Where an amount is paid into or transferred to a bank account held by the Office, the date on which the amount of the payment or transfer is actually entered in its account is considered to be the date on which the payment has been made to the Office (Art. 7(1) RFees). Thus, dates relating to the mistaken transfer of an appeal fee to a bank account of the German Patent Office were held not to be relevant to establishing whether a fee due to the EPO had been paid in time (see T 45/94 and T 1130/98).

Payment by credit card is deemed to have been made on the date on which the transaction is approved (see OJ 2017 A72 and A73).